

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
NAHMIR GLASS,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
NYPD Police Officer RYAN JONES (in his individual
capacity); NYPD Police Officer NICHOLAS
SANTOMERO (in his individual capacity); NYPD
Sergeant DAVID WELTON (in his individual capacity),

Defendants.
----- X

SUMMONS

Index No.:

Date Purchased: Nov. 2, 2020

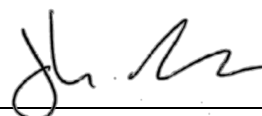
To the above-named defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after service of this summons if not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designated Bronx County as the place of trial. The basis of venue is the location of the events giving rise to the claims.

Dated: New York, New York
November 2, 2020

THE LAW OFFICE OF JOSHUA MOSKOVITZ
233 Broadway, Suite 2220
New York, New York 10279
(212) 380-7040

By: 

Joshua S. Moskowitz

Defendants' addresses:

The City of New York
100 Church Street
New York, New York 10007

Police Officer Ryan Jones
47th Precinct
4111 Laconia
Bronx, New York 10466

Police Officer Nicholas Santomero
47th Precinct
4111 Laconia
Bronx, New York 10466

Sgt. David Welton
Strategic Response Group
1278 Sedwick Avenue
Bronx, New York 10452

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**----- X
NAHMIR GLASS,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
NYPD Police Officer RYAN JONES (in his individual
capacity); NYPD Police Officer NICHOLAS
SANTOMERO (in his individual capacity); NYPD
Sergeant DAVID WELTON (in his individual capacity),Defendants.
----- X**VERIFIED COMPLAINT**

JURY TRIAL DEMANDED

Index No.:

Plaintiff NAHMIR GLASS, by and through his attorney, Joshua S. Moskowitz, Esq.,
alleges as follows:

PRELIMINARY STATEMENT

1. The evening of March 9, 2019, an NYPD Anti-Crime unit working in the Bronx stopped a vehicle with four young black men inside. Plaintiff Nahmir Glass was a passenger in the back seat of the vehicle. When they were stopped, Mr. Glass and his friends were heading home after playing basketball at Fordham University. Mr. Glass is a college student and neither he nor anyone else in the car had committed a crime.

2. The officers ostensibly stopped the vehicle for speeding, but as one of the officers told the driver after making him step out of the vehicle, they were actually looking for guns and drugs and had no intention of issuing the driver a speeding ticket. The officers had no reason to suspect Mr. Glass or his friends had drugs or guns. In reality, the only reason the officers stopped the car and proceeded to interrogate the car's occupants is that they were young black men.

3. When Mr. Glass and other occupants in the car began filming the officers with their cell phones and asking why they were being detained, the officers became aggressive and demanded the occupants exit the vehicle. The passengers were unsettled by this, understandably, given the history of such encounters turning deadly for black men in their position, which they explained to the officers.

4. Nonetheless, and without any articulable safety reason, the officers dragged Mr. Glass and the other occupants out of the vehicle, seized their cell phones as “arrest evidence,” and placed them under arrest. Officer Ryan Jones later prepared an arrest report accusing Mr. Glass of committing Obstruction of Governmental Administration (“OGA”), a Class A Misdemeanor. The arrest report falsely claimed that Mr. Glass attempted to prevent the driver from receiving a summons, which was entirely untrue. Indeed, the video from the Body Worn Camera of the officer who was talking to the driver captured him telling the driver that he did not intend to issue him a summons.

5. The District Attorney’s Office declined to prosecute Mr. Glass because, it found, Officer Jones could not articulate how Mr. Glass prevented him from issuing the driver a summons for speeding. The Civilian Complaint Review Board investigated the incident and found the officers had abused their authority by: (1) illegally questioning one of the car’s occupants; (2) by illegally frisking one of the car’s occupants; (3) illegally interfering with the use of a recording device by one of the car’s occupants; (4) illegally searching Mr. Glass’s vehicle; and (5) illegally seizing Mr. Glass’s cell phone.

6. This case is brought to vindicate Mr. Glass’s civil and constitutional rights, to obtain damages for his injuries, and to see that the defendant officers are held accountable for their misconduct.

JURISDICTION

7. This action is based on violations of plaintiff's rights under the New York State Constitution, common law, and statutes, as well as 42 U.S.C. § 1983 for violations of Plaintiff's federal constitutional rights.

8. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

9. Venue is proper in Bronx County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Bronx County is where the events giving rise to this action took place.

JURY DEMAND

10. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

11. Plaintiff NAHMIR GLASS is a citizen of the United States and of the State of New Jersey.

12. Defendant THE CITY OF NEW YORK ("the City") is a municipal entity created and authorized under the laws of the State of New York.

13. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as "NYPD"). The NYPD acts as the City's agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

14. Upon information and belief, at all relevant times, defendants RYAN JONES, NICHOLAS SANTOMERO, and DAVID WELTON, were and are citizens of the United States and the State of New York.

15. At all relevant times, the individual defendants were employed by the City and acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

16. At all relevant times, the individual defendants violated plaintiff's clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution and Article 1 §§ 1, 11, and 12 of the New York State Constitution, of which reasonable law enforcement officers in their respective circumstances would have known were violations of plaintiff's rights.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

17. Plaintiff served a Notice of Claim upon the City by electronic means, as prescribed by the Office of the New York City Comptroller, on June 7, 2019, within ninety days of the accrual of Plaintiff's claims.

18. Plaintiff received electronic confirmation that his Notice of Claim was received by the New York City Comptroller's Office.

19. Defendant City conducted an examination of Plaintiff pursuant to New York General Municipal Law § 50-h on February 10, 2020.

20. More than thirty days have elapsed since the Notice of Claim was served on the New York City Comptroller's Office, and the City has neglected or refused to adjust or pay said claims.

21. This action is filed within one year and ninety days of the events giving rise to Plaintiff's claims, as tolled by the Executive Orders of the Governor of New York due to COVID.

STATEMENT OF FACTS

22. Around 7:45 p.m. on March 9, 2019, Plaintiff Nahmir Glass was in his car.

23. He was a passenger in the back seat as one of his friends drove.

24. Nahmir Glass is a young, black man; and the other three occupants of the car were also young, black men.

25. They were stopped by NYPD Anti-Crime Officers Ryan Jones and Nicholas Santomero in the vicinity of Paulding Avenue and East 214th Street in the Bronx.

26. Upon information and belief, the officers stopped the car so they could interrogate the car's occupants because they were all young, black men.

27. None of the occupants of the vehicle had committed a crime and the officers had no reason to suspect anyone in the car had drugs or guns.

28. Officer Jones was speaking with the driver and when the driver asked to know why the officer had stopped them, he implied the car was speeding and he ordered the driver to step out of the vehicle.

29. Upon information and belief, Sgt. David Welton and other officers arrived at the scene.

30. Officer Jones told the driver that he did not intend to issue the driver a speeding ticket and was only looking for guns and drugs.

31. As Officer Jones was speaking with the driver, Plaintiff began recording the officer standing by his window and asked the officer to identify himself.

32. The officers became aggressive and demanded the occupants exit the vehicle.

33. Plaintiff told one of the officers, in sum and substance, that he was scared and did not want to exit the vehicle given the history of such encounters turning deadly for young, black men in his position.

34. There was no objective, credible concern that justified the officers using force on the occupants to remove them from the vehicle.

35. Nonetheless, the officers dragged Plaintiff and the other occupants out of the vehicle.

36. Sgt. David Walton illegally seized Plaintiff's cell phone, which was later vouchered as "arrest evidence."

37. Plaintiff was searched, placed in handcuffs, and transported to the 47th Precinct.

38. After Plaintiff and the other occupants were removed from the scene, the defendant officers searched the vehicle.

39. The officers did not have a warrant to search either the occupants of the vehicle or the vehicle itself.

40. There was no contraband in the vehicle.

41. Plaintiff was eventually taken to Central Booking.

42. Officer Ryan Jones prepared an arrest report that falsely accused Plaintiff of committing Obstruction of Governmental Administration, a Class A Misdemeanor.

43. Officer Jones's arrest report falsely claimed that Plaintiff had attempted to prevent the driver from receiving a summons, which was untrue.

44. The District Attorney's Office declined to prosecute Plaintiff because there was no evidence he prevented the officers from issuing the driver a summons for speeding.

45. Plaintiff was finally released from custody at approximately 5:00 p.m. on March 10, 2019.

46. Plaintiff went to the 47th Precinct but was unable to retrieve his car keys and other belongings.

47. Plaintiff was forced to return to the 47th Precinct again the following day to retrieve his belongings, including his car keys.

48. Plaintiff was a student at Lehman College and missed classes as a result of this arrest.

49. As a result of his arrest, Plaintiff began to experience back pain.

50. The Civilian Complaint Review Board investigated the incident and substantiated Abuses of Authority against the officers for: (1) illegally questioning one of the car's occupants; (2) illegally frisking one of the car's occupants; (3) illegally interfering with the use of a recording device by one of the car's occupants; (4) illegally searching Plaintiff's vehicle; and (5) illegally seizing Plaintiff's cell phone.

51. As a direct result of the defendants' conduct, plaintiff suffered the violation of his federal and state constitutional rights, as well as other rights protected by New York statutes and common law.

52. Among other things, plaintiff suffered a loss of his liberty, emotional pain and suffering, distress, humiliation, fear, embarrassment, and damage to his personal property.

FIRST CAUSE OF ACTION
New York State Constitutional Violations

53. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

54. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 §§ 1, 11, and 12 of the New York State Constitution, including, without limitation, the rights and privileges secured to all citizens of the State of New York, the right not to be denied the equal protection of the laws, and the right to be free from unreasonable searches and seizures.

55. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

56. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – Federal Constitutional Violations

57. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

58. In committing the acts and omissions complained of herein, the defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to (a) the right to be free from unreasonable searches and seizures, (b) the right to be free from arrest without probable cause, (c) the right to be free from deprivation of liberty without due process of law, (d) the right to be free from detention without probable cause, and (e) the right to the equal protection of the laws.

59. In committing the acts and omissions complained of herein, the defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

60. As a direct and proximate result of the defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

61. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CAUSE OF ACTION
False Imprisonment

62. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

63. The defendants, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or other legal justification,

64. Plaintiff was aware of this detention and did not consent to it.

65. The defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

66. The City is vicariously liable for the conduct of the defendant officers.

FOURTH CAUSE OF ACTION
Battery

67. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

68. Without just cause or consent, the defendants willfully and maliciously used physical force against plaintiff causing him injuries.

69. The defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights, and is therefore liable for punitive damages.

70. As a direct and proximate result of the defendants' conduct, plaintiff suffered the injuries and damages set forth above.

71. The City is vicariously liable for this conduct.

FIFTH CAUSE OF ACTION

Assault

72. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

73. The defendants acted with the intent to cause plaintiff to fear for his own physical safety and to fear that violent contact was imminent.

74. The defendants acted with the intent to harass, annoy, and/or alarm plaintiff.

75. As a result of the defendants' conduct, plaintiff became apprehensive and feared for his own physical safety and feared that violent contact was imminent.

76. As a direct and proximate result of the defendants' conduct, plaintiff suffered the injuries and damages set forth above.

77. The City is vicariously liable for this conduct.

SIXTH CAUSE OF ACTION

Conversion

78. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

79. Defendant Walton acted with the intent to deprive plaintiff of his property, viz., his cell phone.

80. As a result of defendant Walton's conduct, plaintiff was deprived of his cell phone.

81. The City is vicariously liable for this conduct.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Screening, Retention, Training, Supervision, and Discipline

82. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

83. The City, acting through the NYPD, has a duty to use reasonable care in the hiring, screening, retention, training, supervision, and discipline of their employees, including police officers. The City and the NYPD failed to discharge this duty.

84. The City and the NYPD knew of complaints and misconduct by the individual defendants prior to the violations of the plaintiff's rights.

85. Prior to Plaintiff's arrest, civilian complaints had been filed against all of the individual defendants.

86. Before Plaintiff's arrest, Officer Santomero had been sued for civil rights violations at least three times:

- a. *Diaz v. City of New York*, No. 16-cv-9648 (S.D.N.Y.) (settled for \$20,000);
- b. *Sander v. City of New York*, Index No. 28978/2018E (Bronx Cnty.) (pending);
- and
- c. *Chevannes v. City of New York*, No. 29594/2017 (Bronx Cnty.) (resolved).

87. The City and NYPD failed to investigate and correct the problems with individual defendants' behavior.

88. The violations of plaintiff's rights by the individual defendants was a foreseeable consequence of the City's and NYPD's failure to adequately screen, train, reprimand, or discipline, the individual defendants.

89. As a direct and proximate result of the individual defendants' conduct, plaintiff suffered the injuries and damages set forth above.

EIGHTH CAUSE OF ACTION

Bias-based profiling in violation of N.Y.C. Admin. Code § 14-151

90. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

91. The individual defendants intentionally engaged in "bias-based profiling" as that term is defined in N.Y.C. Admin. Code § 14-151, *viz.*, the individual defendants relied on the actual or perceived race or color of the plaintiff and the other occupants of plaintiff's car as the determinative factor in (a) stopping the vehicle, (b) ordering the vehicle's occupants, including the plaintiff, to exit the vehicle, (c) searching the plaintiff, and (d) searching plaintiff's car.

92. Plaintiff is therefore entitled to a judicial declaration that the individual defendants violated N.Y.C. Admin. Code § 14-151 and the reasonable attorney's fees and costs of bringing this action.

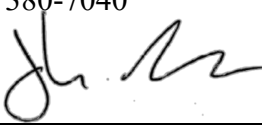
DEMAND FOR RELIEF

WHEREFORE, plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from the individual defendants to the extent allowable by law;
- (c) a declaration that the defendants violated N.Y.C. Admin. Code § 14-151 by engaging in bias-based profiling;
- (d) attorneys' fees;
- (e) the costs and disbursements of this action;
- (f) interest; and
- (g) such other and further relief as this Court deems just and proper.

Dated: New York, New York
November 2, 2020

THE LAW OFFICE OF JOSHUA MOSKOVITZ
233 Broadway, Suite 2220
New York, New York 10279
(212) 380-7040

By: 

Joshua S. Moskowitz

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

JOSHUA S. MOSKOVITZ, being duly sworn, deposes and says:

1. I am an attorney for the plaintiffs in the within action.
2. This verification is made by me because the plaintiff resides outside the county in which my office is located.
3. The allegations contained in the foregoing Verified Complaint are true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true based upon my inquiries.

Dated: November 2, 2020



JOSHUA S. MOSKOVITZ